Fort Bend County District Court

Cause No. 2024-CV-0034

Nicole Gonzales, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Nicole Gonzales

Date:	September 22, 2024
Location:	Offices of Villa & Dawson LLP
Examining attorney:	Stephanie Williams, Ashford & Lyle LLP
Defending attorney:	Samuel Potts, Villa & Dawson LLP

Q: Please state your full name for the record.

A: I'd rather not give my full name on the record for this part. You can use the initials in the caption.

Q: That's fine for now. Where were you on the afternoon of the accident?

A: I was driving home from work on the highway in Sugar Land, Texas. I was in the right lane heading toward the exit.

Q: What were you doing right before the collision?

A: I was keeping pace with traffic. I had my turn signal on because I was moving toward the exit lane when I noticed a vehicle coming up on my left.

Q: Did the other vehicle have its signal on?

A: I didn't see one. It just drifted over into my lane while I was half over. Its rear quarter panel hit my front driver's side and pushed me toward the shoulder.

Q: Did you brake or swerve?

A: I braked and tried to steer back. The impact jerked my head sideways and then forward. I remember my neck snapping, and my loewr back hit the seat hard.

Q: Did you get out of the car at the scene?

A: I got out, but I felt stiff and I was holding my neck. An officer came over and asked if I needed an ambulance. I said I'd see how I felt.

Q: When did you first seek medical care?

A: That evening. My neck was sore and by the next morning I could barely turn my head to check my blind spot.

Q: Who has treated you since the accident?

A: I started with my primary care doctor, then I was referred to a physical therapist. I've been going two or three times a week for most of the time since.

Q: How has your daily life changed?

A: Before, I coached my daughter's soccer team on weekends. Now I have to sit out most practices because standing and bending for long periods makes my back flare up. I also stopped doing my early morning runs.

Q: Has anyone helped you with household tasks?

A: My husband has taken over most of the yard work and the grocery runs. I can lift light things, but anything heavy hurts.

Q: Do you still have pain today?

A: Yes. It's less than it was, but I wake up stiff most mornings. Sitting in the car for more than twenty minutes is hard, and I try to avoid long drives.

Q: Have you had any prior neck or back problems?

A: No, not that required treatment. I had noraml aches from getting older, but nothing like this.

Q: Thank you. Nothing further for now.